

10:00

This instrument prepared by:
 Kay B. Housch, Esq. BPR#010995
 Kay B. Housch, P.C.
 Suite 310, 222 Second Avenue North
 Nashville, Tennessee 37201

Pamela L. Whitaker, Register
 Sumner County Tennessee
 Rec #: 601444
 Rec'd: 55.00 Instrument #: 733178
 State: 0.00
 Clerk: 0.00
 EDP: 2.00 1/12/2005 at 10:00 am
 Total: 57.00 in
 Record Book 2169 Pas 767-777

FIRST AMENDMENT TO WINSTON HILLS DEVELOPMENT GUIDELINES

THIS FIRST AMENDMENT TO WINSTON HILLS DEVELOPMENT GUIDELINES, hereinafter referred to as the "Guidelines Amendment", set forth and entered into as of this the 1st day of January, 2005.

WITNESSETH

WHEREAS, Halo Properties LLC, a Tennessee limited liability company, was appointed Successor Declarant for Winston Hills Subdivision by instrument recorded in Record Book 1488, page 550, Register's Office of Sumner County, Tennessee; and

WHEREAS, the Successor Declarant owns certain property in Hendersonville, Sumner County, Tennessee, shown on the plats of Winston Hills recorded in the Register's Office of Sumner County, Tennessee, which property has been developed as Winston Hills Subdivision pursuant to that certain Winston Hills Development Guidelines attached as Exhibit "D" (hereinafter "Development Guidelines") to the Declaration of Covenants, Conditions and Restrictions recorded in Record Book 982, page 242, Register's Office of Sumner County, Tennessee (hereinafter "Declaration"); and

WHEREAS, said Successor Declarant desires that the Development Guidelines be amended in order to correct certain terms and to add, revise and remove certain guidelines, all incorporated into the Development Guidelines by this Guidelines Amendment to which Winston Hills Subdivision shall be subject and by which Winston Hills Subdivision shall be benefited; which shall be made a part of the Development Guidelines; and

WHEREAS, pursuant to Article IX of the Declaration, the Declaration, of which the Development Guidelines are a part, may be changed, modified, amended or terminated by an instrument in writing setting forth such change, modification, amendment or termination and signed by the owners having not less than 75% of the votes of the owners at the time of said change, modification, amendment, or termination. Any such change, modification, amendment, or termination shall be effective upon the recording of said instrument in the Register's Office of Sumner County, Tennessee; and

WHEREAS, the undersigned Successor Declarant is an owner having 75% or more of the votes of the owners as of the date of this Guidelines Amendment.

First Amendment to Development Guidelines
Page 2

NOW THEREFORE, in consideration of the premises and Ten Dollars (\$10.00) and other good and valuable consideration, the receipt of all of which is hereby acknowledged, the Successor Declarant does hereby declare that the property shown on the plats of Winston Hills, recorded in the Register's Office of Sumner County, Tennessee, and developed as Winston Hills Subdivision pursuant to the Declaration, shall be held and conveyed subject to the terms, covenants, conditions and restrictions of the Development Guidelines as amended by this Guidelines Amendment, effective upon the recording of this Guidelines Amendment with the Register of Deeds of Sumner County, Tennessee:

1. The following is added to **CHAPTER ONE INTRODUCTION**

"Any and all references herein to 'Master Developer' shall hereafter refer to 'Successor Declarant' as defined in Article I of the Declaration, as amended by Appointment of Successor Declarant for Winston Hills Subdivision recorded in Record Book 1488, page 550 Register's Office of Sumner County, Tennessee.

Any and all references herein to 'DRC' shall hereafter refer to 'ACC' as defined in Article I of the Declaration, as amended by Eighth Amendment to Winston Hills Declaration being recorded simultaneously herewith."

2. The following is added to **CHAPTER TWO WINSTON HILLS GENERAL DEVELOPMENT PLAN 2.1 The Site**

"The land described in Exhibit "A" attached hereto (hereinafter referred to as the "Commercial Tracts") is excluded from and not encumbered by the provisions of these Development Guidelines."

3. The following is added to **CHAPTER TWO WINSTON HILLS GENERAL DEVELOPMENT PLAN 2.2 The Plan**

"No lot shall be subdivided or its boundary lines changed except with the prior written approval of the Board of Directors of the Association. However, the Successor Declarant hereby expressly reserves the right to re-plat any Lot or Lots owned by Successor Declarant. Any such division, boundary line change, or re-platting shall not be in violation of the applicable subdivision and zoning regulations."

4. The following is added to **CHAPTER THREE DEVELOPMENT GUIDELINES 3.1.1 Conformity with Design Guidelines**

First Amendment to Development Guidelines
Page 3

"All provisions of these Development Guidelines and any rules and regulations or use restrictions promulgated pursuant thereto which govern the conduct of Owners and which provide for sanctions against Owners shall also apply to all occupants, guests, and invitees of a Unit."

5. CHAPTER THREE DEVELOPMENT GUIDELINES 3.1.2 General Responsibilities is deleted in its entirety and the following is substituted therefore:

3.1.2 General Responsibilities

No portion of Winston Hills shall be used, in whole or in part, for the storage of any property or thing that will cause it to appear to be in an unclean or untidy condition or that will be obnoxious to the eye; nor shall any substance, thing or material be kept upon any portion of Winston Hills that will emit foul or obnoxious odors or that will cause any noise or other condition that will or might disturb the peace, quiet, safety, comfort, or serenity of the occupants of surrounding property. No noxious or offensive activity shall be carried upon any portion of Winston Hills, nor shall anything be done thereon tending to cause embarrassment, discomfort, annoyance or nuisance to any person using any portion of Winston Hills. There shall not be maintained any plants or animals or device or thing of any sort whose activities or existence in any way is noxious, dangerous, unsightly, unpleasant, or of a nature as may diminish or destroy the enjoyment of Winston Hills.

It shall be the responsibility of each Owner to prevent the development of any unclean, unhealthy, unsightly, or unkempt condition on his or her Lot. No lumber, stone, block, concrete, or other building materials, nor any other thing used for building purposes shall be stored on any property except for the purpose of construction of a Unit or addition to a Unit by a professional homebuilder or contractor. Lawns shall be kept mowed and maintained; and grass height shall not exceed six inches. Driveways, sidewalks and streets must be kept clean and free of grass clippings. Dead trees, dead shrubs and any other dead or diseased landscaping on a Lot shall be removed and replaced. Vinyl/wood siding shall be kept clean and mold-free. The pursuit of hobbies or other activities, including specifically, without limiting the generality of the foregoing, the assembly and disassembly of motor vehicles and other mechanical devices which might tend to cause disorderly, unsightly, or unkempt conditions, shall not be pursued or undertaken on any part of Winston Hills.

In consideration of Successor Declarant's installation of additional landscaping, clubhouse, pool, and gazebo, Successor Declarant is not required to do further improvements, including landscaping, to the common areas of Winston Hills Subdivision. If either Successor Declarant or the Association, at their discretion,

First Amendment to Development Guidelines
Page 4

should make further improvements, erect a park or playground, or provide areas or equipment for use by the Owners of Winston Hills, then the same shall be used at the risk of the user. The Successor Declarant or Association shall not be liable to any person for any claim, damage or injury occurring or related to the use of improvements to the common areas.

6. The following paragraph under **CHAPTER THREE DEVELOPMENT GUIDELINES 3.3.3 Through Lots** is deleted in its entirety:

"As part of the overriding theme of Winston Hills, the Master Developer will be responsible for the design and installation of landscape screening/buffering within the common open space along Winston Hills Parkway and Gallatin road and within the rear yards of those lots abutting Caudill Drive."

7. The following paragraph under **CHAPTER THREE DEVELOPMENT GUIDELINES 3.4.1 Typical Village Street Layout and Maintenance** is deleted in its entirety:

"The builder/owner shall escrow a lump sum of \$500.00 per lot to be used for street-tree planting within each village. The Master Developer will install the trees in each village after the homes in a given area are substantially finished."

8. The following is added to **CHAPTER THREE DEVELOPMENT GUIDELINES 3.6.1 General Garage – Lot Relationships**

"The garage must be attached to the Unit."

9. The following is added to **CHAPTER THREE DEVELOPMENT GUIDELINES 3.9.1 General Responsibility**

"The Declarant/Successor Declarant shall not be responsible for construction, installation, development or maintenance of any features, structures, lighting or landscape/tree plantings within the Common Area or within or along streets within Winston Hills, upon conveyance of the Common Area to the Winston Hills Homeowners Association"

First Amendment to Development Guidelines
Page 5

10. The following is added to **CHAPTER THREE DEVELOPMENT GUIDELINES 3.9.10 Roof Top Antenna and Satellite Dish**

"Satellite dishes shall be no larger than sixteen (16) inches in diameter, and upon approval by the Board or the ACC, shall be placed in an unobtrusive part of the Unit, preferably in the rear, and all wires concealed in a professional manner."

11. The following is added to **CHAPTER THREE DEVELOPMENT GUIDELINES**

3.9.13 Energy Conservation Equipment. No solar energy collector panels or attendant hardware or other energy conservation equipment shall be constructed or installed unless it is an integral and harmonious part of the architectural design of a structure, as determined in the discretion of the Board or the ACC

12. The following paragraph under **CHAPTER THREE DEVELOPMENT GUIDELINES 3.10.1 General Responsibilities** is deleted in its entirety

"The Master Developer is responsible for the installation of street lighting along Winston Hills Parkway and all public rights of way within the villages, as directed by the City of Hendersonville, as well as landscape lighting of the projects entry walls, graphics and other landscape features. The street lighting system will use a decorative-type fixture and will be maintained by Winston Hills Homeowners Association."

13. The following is added to **CHAPTER THREE DEVELOPMENT GUIDELINES 3.10.2 General Design Standards**

"Colored insect repellant lights are allowed."

14. **CHAPTER THREE DEVELOPMENT GUIDELINES 3.11.1 Pool and Spas** is hereby deleted in its entirety and the following is substituted therefore:

First Amendment to Development Guidelines
Page 6

3.11.1 Pools and Spas

Above ground type pools are prohibited. In ground swimming pools and small above ground spas or hot tubs shall be allowed only upon approval of the Board or the ACC, and shall be located in the rear of the Unit. In ground swimming pools must have a perimeter enclosure, and above ground hot tubs or spas must incorporate skirting and landscaping. All appurtenances (filters, pumps, heaters, etc.) must be screened from public view. Landscape, skirting, screening and enclosure plans must be submitted in advance and approved by the Board or the ACC. All state and local codes pertaining to swimming pools and spas must be met.

15. **CHAPTER THREE DEVELOPMENT GUIDELINES 3.11.4 Fencing/Walls** is hereby deleted in its entirety and the following is substituted therefore:

3.11.4 Fences

Fences may be a permitted part of any pre-designed construction plan for Units and thereafter, as may be permitted by the Board or ACC in accordance with these Development Guidelines. Aluminum or metal is the requisite fencing material for Winston Hills, except that wood fences installed by the professional homebuilder are permitted for Lots in the "Villas" section of Winston Hills. No dog runs or animal pens shall be permitted. No fence shall be erected on any lot or building site closer to the street than the rear corners of the Unit, and on corner lots, the front setback requirements on both streets shall apply. No fence will be permitted that is over six (6) feet in height. Fences must be located along the property lines of a Lot, subject to any easements located on said Lot. All fence specifications and location must be submitted in advance to the Board or ACC for written approval or disapproval.

16. **CHAPTER THREE DEVELOPMENT GUIDELINES 3.11.5 Garden Ornament** – the second paragraph is deleted in its entirety and the following is substituted therefore:

"Decorations for holidays, including exterior seasonal holiday lighting, are acceptable, but must not be in place 30 days prior to an event and must be removed 15 days after an event."

17. The following is added to **CHAPTER THREE DEVELOPMENT GUIDELINES 3.11.5 Garden Ornament**

First Amendment to Development Guidelines
Page 7

"No artificial vegetation shall be permitted on the exterior of any portion of Winston Hills. Exterior sculpture, fountains, and similar items must be approved in accordance with these Development Guidelines."

18. The following is added to **CHAPTER THREE DEVELOPMENT GUIDELINES 3.12.1 General Provisions**:

"Declarant/Successor Declarant shall not be responsible for landscaping common open spaces, major street corridors and rights of way, project entry features and entries into individual villages after conveyance of the Common Area to the Winston Hills Homeowners Association."

19. **CHAPTER THREE DEVELOPMENT GUIDELINES 3.12.3 Street Tree Planting** is hereby deleted in its entirety.

20. The first paragraph under **CHAPTER THREE DEVELOPMENT GUIDELINES 3.12.4 Minimum Residential Tree Planting Requirement** is deleted and the following is substituted therefore

"The total quantity of trees must be planted within the front yard setback of a Lot unless the Lot backs up to Caudill Drive, common areas, or other areas of the development that do not contain residential housing or unless approved by the Board or the ACC."

21. **CHAPTER THREE DEVELOPMENT GUIDELINES 3.14.1 General Responsibilities** is hereby deleted in its entirety and the following is substituted therefore:

3.14.1 General Responsibilities

No sign of any kind shall be erected within the properties without the written consent of the Board. No sign for advertising or for any other purpose shall be displayed on any lot or on a building or structure on any lot except one (1) "For Sale" sign, which shall be of a standard size for the advertisement for sale of homes in the community; except the Successor Declarant or any professional builder shall have the right to erect larger signs when advertising lots/homes and may place signs designating the lot number and status of lots without Board approval. Political signs shall be allowed during Local, State or Federal elections and shall be in compliance with any City of Hendersonville sign ordinance.

First Amendment to Development Guidelines

Page 8

This restriction shall not prohibit permanent or occupant name signs and lot numbers as allowed by applicable zoning regulations. Furthermore, any sign shall comply with local laws, ordinances and regulations.

The Board shall have the right to erect signs in Winston Hills whenever and wherever it, in its sole discretion, deems appropriate. The Board shall also have the right to remove any unapproved sign, advertisement, billboard, or structure that is placed in Winston Hills, and in so doing, shall not be deemed to be trespassing upon or damaging the Lot from which the unapproved sign or structure is removed.

22. The following is added to **CHAPTER THREE DEVELOPMENT GUIDELINES**

3.16 Parking

Vehicles shall be parked only in the garages or in the driveways serving the Units. Vehicles, bicycles, toy vehicles, or any recreational vehicle should not be parked so as to block or obstruct sidewalks in any way. No parking shall be permitted on any street, except temporarily for social gatherings or other functions, as may be approved by the Board or the ACC. No commercial vehicles, tractors, mobile homes, recreational vehicles, trailers (either with or without wheels), campers, camper trailers, boats and other watercraft, and boat trailers shall be parked in driveways or on public streets or parking areas that are part of the Common Area. No inoperable vehicles shall be parked on any street or in any driveway in Winston Hills at any time.

3.17 Animals and Pets.

No animals, reptiles, rodents, livestock, birds, fish or poultry of any kind shall be raised, bred, or kept on any portion of Winston Hills, except that dogs, cats or other usual and common household pets not to exceed a total of two (2) may be permitted on a Lot. Pets which are permitted to roam free, or, in the sole discretion of the Association, endanger the health of, or make objectionable noise, or constitute a nuisance or an inconvenience to the Owners of Lots or the owner of any portion of Winston Hills shall be removed upon request of the Board. If the owner of the offending pet fails to honor such request, that pet may be removed by the Board and turned over to the appropriate agency for keeping or disposal. No pets shall be kept, bred, or maintained for any commercial purpose. Dogs, when outside of a Unit, shall be confined on a leash and held under the physical control of a responsible person. Pet owners are responsible for the removal of pet waste from sidewalks, streets, driveways and any common areas or common elements and disposal in an appropriate receptacle. Electronic fences may be installed for the control of pets upon approval by the ACC and/or the Board of Directors.

First Amendment to Development Guidelines
Page 9

3.18 Basketball Equipment, Clotheslines, Garbage Cans, Tanks, etc.

No clotheslines, above-ground tanks, and other similar items shall be placed, allowed or maintained upon any portion of Winston Hills, including any Lot or Unit. Permanent basketball goals must have clear backboards and their location on a Lot must be approved in advance by the Board or the ACC. All garbage cans shall be located or screened so as to be concealed from view of neighboring Units, streets, and property located adjacent to the Unit, except that garbage cans may be placed at curbside on days designated for trash pick-up for that particular Lot. All rubbish, trash, and garbage shall be regularly removed from Winston Hills and shall not be allowed to accumulate thereon.

3.19 Guns.

The discharge of firearms within Winston Hills is prohibited. The term "firearms" includes "B-B" guns, pellet guns, and other firearms of all types.

3.20 Tents, Trailers and Temporary Structures.

Except as may be permitted by the ACC during initial construction within Winston Hills, no tent, utility, shed, shack, trailer, mobile home or houseboat or other structure of a temporary nature shall be placed upon a Lot or any part of Winston Hills.

IN WITNESS WHEREOF, the undersigned has caused this instrument to be executed as of the date first above written.

Successor Declarant:

HALO Properties, LLC, a Tennessee limited liability company

By: 

A. Danny Hale, Chief Manager

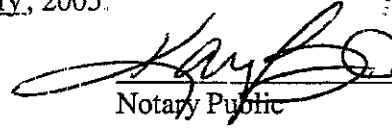
First Amendment to Development Guidelines
Page 10

STATE OF TENNESSEE
COUNTY OF SUMNER

Personally appeared before me, the undersigned, a Notary Public in and for said County and State, A. Danny Hale, with whom I am personally acquainted or proved to me on the basis of satisfactory evidence, and who acknowledged that he executed the within instrument for the purposes therein contained, and who further acknowledged that he is the Chief Manager of the maker or a constituent of the maker and is authorized by the maker or by its constituent, the constituent being authorized by the maker, to execute this instrument on behalf of the maker.

Witness my hand this 4th day of January, 2005.

My commission expires: 7/30/05


Notary Public
